

		On 7/16/25, this court granted a Motion for Stay filed by Objector Katie Mello Lutz ("Objector") and issued an order staying the instant trust proceeding pending the resolution of the civil action commenced in the state of Massachusetts or further order of court. (ROA 66.) This ruling was made without prejudice to any party's right to seek an order lifting the stay upon stipulation of the parties or upon a showing of good cause. The court further set a Review Hearing re Stay for 1/14/26. At the 1/14/26 Review Hearing re Stay, counsel informed the court that the Massachusetts action was still pending, and the court continued the Review Hearing to 8/19/26. (ROA 88.) On 8/3/26, counsel for Petitioner Kevin Mello ("Petitioner") filed a Status Report, informing the court that the Massachusetts action is still pending and there are no court hearings scheduled in that action. (ROA 99.) In said Status Report, Petitioner argues that this court may determine the validity of the Decedent's 9/19/21 will in this trust proceeding (rather than in a separate probate proceeding) because (1) there is no probate matter submitting a will, and (2) the trust instrument incorporates the use of a will to determine distribution of trust assets. The court finds such argument persuasive, though it is not currently at issue and, therefore, unopposed. Petitioner further contends in the Status Report that the issue of the validity of the will in question is only before this court. From the court's reading of the verified complaint filed in the Massachusetts action, it appears that Objector challenges the validity of the will in said complaint. (See ROA 14, Ex. A, ¶¶ 15-17.) It is not clear whether Petitioner is requesting that this action proceed on the issue of the validity of the will while the Massachusetts action is still pending. If Petitioner wishes to have the stay or any portion thereof lifted, he should file a noticed motion to lift the stay. Counsel for Objector should be prepared to discuss the status of the Massachusetts action.
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